INTELLECTUAL PROPERTY & ARTIFICIAL INTELLIGENCE (AI)

WHAT IS INTELLECTUAL PROPERTY?

- WIPO defines IP as:
  - products of human mind
  - fruits of human creativity, and
  - innovation.
- IP is the result of creativity protectable by copyright, trademark, trade secrets, industrial designs and patents registrations in Nigeria.- s. 47 Nigeria Start-up Act 2022.
- It is the name given to the various types of intangible properties arising from creations of the mind which in their broadest sense have no physical form(WIPO Patent Drafting Manual p.6).
- Global regulatory body of IP is WIPO.

- IP enables people to earn recognition & financial benefits from their inventions & creations.
- Aims at fostering a balanced environment where creativity & innovation flourish.
- Hence, IP refers to creations of the mind that are legally protected as intangible assets.
- Includes inventions, literary & artistic works, designs, symbols, names, & images used in commerce.
- Law grants the creator/owner of IP certain exclusive rights to use, produce, or commercialize their work for a period, to encourage innovation, creativity, & fair competition.

FORMS OF INTELLECTUAL PROPERTY (IT)

- **Copyright:** Protects original literary, artistic, & musical works (e.g., books, films, music, software).
- **Patents:** Protects inventions & technological innovations, granting inventors exclusive rights to exploit their inventions.
- **Trademarks:** Protect words, logos, symbols, or designs that distinguish goods & services.
- **Industrial Designs:** Protect the aesthetic or ornamental aspects of products.
- **Trade Secrets:** Protect confidential biz information (e.g., formulas, processes, strategies) that provide a competitive advantage.
- Essentially, IP law strikes a balance: rewards creators by granting them rights, while eventually allowing the society to benefit when those works enter the public

WHY IP MATTERS IN TODAY'S ECONOMY

- IP plays a crucial role in business and law, & its importance can be understood from several perspectives.

1. Encourages Innovation & Creativity:
   - provides incentives for inventors & creators
   - protects against unauthorized use
   - leads to advancement in science, technology & arts.
2. Adds Value to Business:
   - IP as intangible asset.
   - increases brand value & market competitiveness.
   - Apple, HP, Guinness.
3. Promotes Fair Competition:
   - prevents counterfeiting & imitation,

- ensures that businesses compete on quality & innovation.
- supports brand reputation.

4. Protects Consumers:
   - ensures products authenticity.
   - Protects from fake & harmful goods.
   - builds trust in the marketplace.
5. Supports Economic Growth:
   - IP based industries boost national economies.
   - attracts investments (foreign & local).
   - Nollywood & Copyrights protection.
6. Legal Enforcement & Dispute Resolution:
   - Courts & agencies resolve disputes.
   - balances creators’ rights with public interest.

- promotes global cooperation (e.g., WIPO, WTO-TRIPS).

WHAT IS TRIPS AGREEMENT?

- WTO Agreement on Trade-Related Aspects of Intellectual Property Rights
- Establishes international standards for the protection of intellectual property, copyrights, patents, trademarks, and industrial designs, by setting minimum standards that WTO members must implement in their national laws.
- Ensures that IP rights are protected in a way that facilitates trade, and countries have mechanisms for enforcement and dispute settlement.

LEGAL FRAMEWORK OF IP & AI

- Copyrights Act 2022
- Trademark Act 1967, CAP T13, LFN 2004
- Patents & Designs Act 1971, CAP P2, LFN 2004.
- Trademark Regulations 1990.
- Nigerian Data Protection Act 2023.
- National Digital Economy Policy and Strategy.

REGULATORY FRAMEWORK OF IP & AI

- Nigerian Copyrights Commission
- Patents & Designs Registry
- Trademarks Registry
- Federal Ministry of Industry, Trade & Investments

- Federal High Court
- Ministry of Communication, Innovation & Digital Economy
- National Center For Artificial Intelligence & Robotics (NCAIR)

COPYRIGHT

- Refers to original expressions and works of authorship – the creator of a copyrighted works is called an author. E.g., paintings, photography, music, poems, novels, etc. – s. 108 CA 2022.
- Governing law: Copyright Act 2022.
- Regulatory agency: Nigerian Copyright Commission (NCC).
- Responsibility of NCC: matters relating to copyright, administration, regulation & enforcement – ss. 77(1) & 78(1) Copyrights Act 2022.

- Scope of protection: Literary, musical, artistic works, films, sound recordings, broadcasts, audiovisual works, computer programs, and derivative works – s. 2 CA 2022.

RIGHTS CONFERRED BY COPYRIGHT

- The right of reproduction
- Public performance, broadcast and communicate to the public
- Translate and adaption
- Attribution
- Integrity.

REGISTRATION OF COPYRIGHT

- Copyright registration is not mandatory.
- Automatically granted upon creation
- Desirable to register
- Can be registered physically or electronically.

ONLINE REGISTRATION

a) Create an account on the NCeRS portal (www.eregistration.copyright.gov.ng).

b) Follow the guidelines for online registration which involves completing an application form, uploading the work, and paying the prescribed fee.

PHYSICAL OR MANUAL REGISTRATION

a) Submit application to any of the commission’s offices nationwide.

b) Provide a completed registration form, two copies of the work, and evidence of payment.

ELIGIBLE INTELLECTUAL PROPERTIES

- Literary, musical, artistic works, films, sound recordings, broadcasts, audiovisual works, computer programs, and derivative works – s. 2 CA 2022.
- Works made by or under the direction or control of a govt, its agency, or a prescribed international body – s. 7 CA 2022.

NB:

- For literary, musical, or artistic work to acquire full eligibility status:

i. Some effort has been expended on making the work to give it an original character, and

ii. The work must have been fixed in any medium of expression or

from which it can be perceived, reproduced, or otherwise communicated either directly or with the aid of any machine or device. See s.7(3) CA 2022.

INELIGIBLE WORKS-S. 3 CA 2022

- Categorized into three, *viz.:*

a) Ideas, procedures, processes, formats, systems, methods of operation, concepts, principles, discoveries or mere data.

b) Official texts of a legislative or administrative nature, as well as any official translations, except their compilations; and

c) Official state symbols and insignia, including flags, coat of arms, anthems, and bank note designs.

DURATION OF PROTECTION – S. 19(1) CA 2022

a) For literary, musical, or artistic works other than photographs – 70 years after the end of the year in which the author dies – s. 19(1) CA 2022.

b) Works deriving copyrights from s. 7 CA 2022 (i.e.

made by or under the direction or control of a govt, its agency, or a prescribed international body) – 50 years after the end of the year in which the work was first made available to the public or 50 years after the work was created, if not made available to the public within that time.

c) For audiovisuals – 50 years after the end of the year in which the work was first made available to the public with the consent of the author or 50 years after the work was created, if not made available to the public within that time.

d) For sound recordings – 50 years after the end of the year in which the recording was first made available to

or 50 years after the work was created, if not made available to the public within that time.

e) For broadcast - 50 years after the end of the year in which the broadcast first took place.

f) For anonymous or pseudonymous literary, musical, or artistic works - 70 years after the year in which the work was first made available to the public with the consent of the author or 70 years after the work was created, if not made available to the public within that time. Provided that if the author becomes known, the duration of the copyright reverts to as prescribSed under subsection (1) - s. 19(2) CA 2022.

- S. 19(3) CA 2022, in a joint authorship work, reference to the death of the author shall be to the author who dies last.

COMMENCEMENT OF COPYRIGHT – S. 18 CA 2022

- Subject to the provisions of ss. 3 - 8 of the Act, copyright shall commence when the work is created or made.

REMUNERATION FOR BROADCASTING OF SOUND RECORDING – S. 15 CA 2022.

1. Where a sound recording has been published for commercial purposes, the performer and owner of the copyright shall enjoy the right of equitable remuneration for any broadcast of the sound recording – s. 15(1) CA 2022.

2) The remuneration shall be paid by the person who uses the sound recordings or copies- s. 15(2) CA 2022.

3) The Remuneration & conditions of payment by the user of the sound recordings and the performer and owner of the copyright, or their representatives; and where the parties fail to reach an agreement, it shall be determined by the commission – s. 15(3) CA 2022.

4) Unless, otherwise provided for in an agreement, the distribution of the remuneration between the performer and the owner of copyright in the sound recording shall be determined by the commission - s. 15(4) CA 2022.

OWNERSHIP OF COPYRIGHT - S. 28 CA 2022

- Except as otherwise provided for in an agreement, the ownership of copyright shall initially vest in the author s. 28(1) CA 2022.
- Where a person in the absence of an agreement to the contrary, creates a work under a contract for services or in the course of employment by a govt, ministry, dept or agency of govt or a prescribed international or inter-govtal org, the copyright shall vest in that govt, ministry, dept or agency of govt or a prescribed

- Where a person for private or domestic purpose commissions the taking of a photograph, or painting or drawing of a portrait or the making of an audiovisual work, the person who commissioned the work shall be:

a) Deemed to have a non-exclusive licence to exploit the commissioned work for non-commercial purposes; and

b) Entitled to retrain the publication, exhibition, broadcasting, communication, distribution, and making available of copies of the work to the public.

OWNERSHIP OF COPYRIGHT IN A COLLECTIVE WORK – S. 29 CA 2022

- Collective work is a collection of literary or artistic works, which because of the selection and arrangement of their contents, constitute intellectual creations and as such are protected without prejudice to the copyright in each of the works forming part of such collection. – S.

- E.g. magazines and newspapers made up of various articles and images; journals and anthologies that compile articles, essays, poems, and short stories.
- The compiler holds the copyright in the collection, while the contributing authors retain the rights over their respective works. See s. 29(a) & (b) CA 2022.

ANTI-PIRACY AND DUTY TO KEEP RECORDS – S. 48 CA 2022.

- A person carrying on the business of production or reproduction of works, including publishers, printers, producers, manufacturers, aggregators of works in which copyright subsists, to keep a record of all works dealt with in the course of their business, showing the:

- name of the author
- title of the work
- date of use or production
- quantity of the work used or produced, and
- any other information as may be prescribed by the NCC. See s. 48 CA 2022.

JURISDICTION

- FHC – exclusive jurisdiction on both civil and criminal matters arising from the Act. – s. 103 CA 2022.

TRADEMARKS

- TM is a form of intellectual property that consists of a word, sign, phrase, symbol, design, or a combination that legally distinguishes a product or service from a particular source from others, protecting its brand identity and preventing others from using it.
- It is a sign that can identify and distinguish the source of the goods of one company or individual from those of others.
- It may include a label, name, brand, device, heading, letter, word, signature, numeral, or any combination of these elements.
- The law of trademark is aimed at the subtle as well as to obvious infraction of it and both the ears and the eyes must be together involved in the exercise of comparison – Coker, JSC in Bell and Sons Co. v. Aka and Anor (1972) SC 10 p. D-D.

- Divided into parts A and B.
- Nigeria uses the Nice International Classification of Trademarks.
- Products are classified into various classes, e.g., class 1, 2, 3, etc.
- Unlike other jurisdictions, “use” is not a mandatory requirement for registration of trademarks in Nigeria.
- Intention to use is sufficient.

LEGAL FRAMEWORK

- Trademark Act, Cap T13, LFN 2004
- Trademark Regulations
- Trademark (Miscellaneous Offences) Act, Cap T12, LFN 2004.

REGULATORY BODY

- Trademarks, Patents & Design Registry, Federal Ministry of Trade and Investment.
- Registers and administers the protection of trademarks, patents and designs in Nigeria.

REQUIREMENTS FOR REGISTRATION OF TRADEMARK – S.9 TRADEMARK ACT

1) The name of a company, individual or firm, represented in a special or particular manner;
2) The signature of the applicant for registration, or some predecessor in his business;
3) An invented word(s);

4) A word(s) having no direct reference to the character or quality of the goods, and not being according to its ordinary signification, a geographical name or a surname; and

5) Any other distinctive mark.

REQUIREMENTS FOR FILING

- Applicant details – physical address, nationality, e-mail address, and telephone number.
- Trademark representation, which must be visible, clear, and distinct (if it is to be filed online, soft copies are to be provided in jpeg format.
- The range of goods covered or proposed to be covered by the trademark. A separate application is filed for each class of goods or service to be covered by the trademark.

UNREGISTRABLE TRADEMARK

- A mark, design, or symbol that may likely deceive, confuse, be contrary to law and morality, or be scandalous is not registrable - s. 11 TA Cap T13 2004.

PROCEDURE FOR REGISTRATION OF TRADEMARK

i. Conduct availability search at the trademark registry.

ii. Preliminary advice by the Registrar of Trademarks as to distinctiveness or capability of distinguishing, by a person proposing to apply for the registration of a trademark.

iii. Filing of application along with the required documents.

IV. A temporary number is allocated to the application

application for trademark.

VI. Examination to ensure there is no trademark that conflicts with the mark submitted for registration or to ensure that the mark is not deceptive, distinctive, or scandalous in any way or

not as well as the mark should not contain prohibited words.

VII. An acceptance/refusal Form will be issued by the Registrar depending on whether the mark was accepted or not.

VIII. Advertisement in the Trademark Journal for two months.

IX. If no objection within the two months in accordance with s. 20 (1)-(5) of the Act and Regulations 48-57, or opposition fails.

EFFECTS OF REGISTRATION – S. 5 OF THE ACT

- Registration gives the proprietor exclusive right to the use of the trademark in relation to the goods.
- The proprietor can claim damages against anyone who infringes on his trademark. See Morison Industries PLC v. CPL Industries Ltd (2021) LPELR 52981 (CA).

DURATION OF VALIDITY - S. 23 OF THE ACT

- Initial validity - 7 years.
- Thereafter renewable for every 14 years.

PATENTS AND DESIGNS

- Patent is a legal document granting its holder the exclusive right to control the use of an invention as set out in the 'patent's claims' within a limited area and time by stopping others from making, using, selling the invention without authorization - WIPO Patent Drafting Manual, p. 6.
- A patent is a legal right granted to an inventor by a govt, providing exclusive control over their invention for a limited period in exchange for public disclosure of the invention.
- The exclusive right prevents others from making, using or selling the invention without the patent owner's permission.
- Patents encourage innovation by protecting inventors' investments and fostering the public's dissemination of new technical information.

WHAT A PATENT PROVIDES

- **Exclusive Rights:** The patent owner has the sole right to decide who can use, make, and sell their invention.
- **Limited Duration:** Protection lasts for a set period, typically 20 years from the application filing date.
- **Territorial Rights:** A patent is only valid in the country where it was granted; it does not have extraterritorial validity.
- **Public Disclosure:** In exchange for the exclusive right, the inventor must provide a detailed description of the invention to the public.

PATENTABLE INVENTION – S. 1 PDA LFN 2004

- For an invention to be patentable, it must meet three conditions:

1. **Novelty:** The invention must be new;
2. **Utility:** It must have a practical use; and
3. **Non-obviousness:** The invention should not be an obvious variation of existing technology.

WHAT MAY NOT BE PATENTED – S. 1(4) PDA

- Plant or animal varieties, or essentially biological processes to produces plants or animals (other than microbiological processes and their products) or
- Inventions the publication or exploitation of which would be contrary to public order or morality.

WHO MAY APPLY TO REGISTER A PATENT?

- Statutory Inventor – the person who whether he is the original owner or not, is the first to file, or validly claim a foreign priority for the patent application.
- The true inventor whether he is the statutory inventor or not. – s. 2 PDA 2004.

RIGHTS CONFERRED BY A PATENT – S. 6 PDA 2004

- Confers on the Patentee the right to :
  - make, import, sell, or use the product, or stockpile it for the purpose of sale or use; and
  - the act of applying the process or doing in respect of a product obtained directly by means of the process, any other acts mentioned in para. (a).

Duration – s. 7 PDA 2004

- 20 Years from the date of filing the application.
- May lapse for default of the payment of the prescribed annual fee after the expiration of 6 months period of grace.

PROCEDURE FOR REGISTRATION OF PATENTS

- Conduct availability search at the Patents & Designs Registry.
- Apply to the Registrar for the grant of Patent. The application shall comprise the following:

1) A petition or request for a patent with the Applicant’s full name and address (Form 1A).

2) A signed power of attorney authorization of the agent, if the application is made by the agent (Form 2).

3) A specification including a claim(s) in duplicate (Form 3).

4) Plans and drawings, if any, in duplicate.

5) A declaration by the true inventor where applicable. See s. 3 PDA 2004

WHY PATENTS ARE IMPORTANT

- **For inventors:** They offer legal protection, allowing inventors to control the use of their innovations and potentially generate income through licensing fees or royalties.
- **For Society:** By making the technical details of an invention publicly available, patents accelerate further innovation and knowledge sharing.
- **For Businesses:** Patents are a form of intellectual property that can be an asset, used alongside other IP like trademarks and copyrights to maximize the value of an investment in innovation.

INDUSTRIAL DESIGN – S. 12 PDA 2004

- An Industrial design relates to the appearance of an article, which results from features such as the lines or colours of the article on its ornamentation.
- An Industrial design may consist of three-dimensional

ID CREATED IN THE COURSE OF EMPLOYMENT

- Ownership generally transfers to the employer.
- The design is considered a product of the employment, and the employee’s salary serves as good and valuable consideration.
- The employer’s right to ownership is not absolute.
- It may be modified if an explicit contract states otherwise; or
- The employee is hired specifically for inventive activities.
- To avoid potential disputes, it is recommended that both employers and employees have a formal agreement to determine who owns the intellectual property.

RIGHTS CONFERRED

- Reproducing the design in the manufacture of products;
- Importing, selling, or utilizing for commercial purposes a product reproducing the design; and
- Holding such a product for the purpose of selling it or utilizing it for commercial purposes.

DURATION

- An initial period of five years from the date of the application for registration; and may be renewed for further two consecutive periods of five years – s. 20 PDA 2004.

PROCEDURE FOR REGISTRATION OF INDUSTRIAL DESIGN

- Conduct availability search at the PD registry.
- Apply to the Registrar for grant of PD.
- The application shall be accompanied by:

a. prescribed fee

b. where appropriate, a declaration signed by the true creator requesting that he be named as such in the Register, and giving his name and address; and

c. If the application is made by an agent, a signed power of attorney.

Examination and publication of the ID. Registry to assess whether the design meets the necessary requirements for registration. Where satisfactory, design will be published in the Nigerian Industrial Design Journal.

Applicant’s favour, the design will proceed to registration.

- Registration and Issuance of certificate by the Nigerian Industrial Design Registry.

AI REGULATION

- Nigerian Data Protection Act
- FCCPA
- Trademarks Act
- Patents & Designs Act

PROBLEMS OF GENERATIVE AI

- QUESTIONS OF IP.
  - Who is the Author?
  - Can this be registered considering it has no human author?
  - Are the large language models used to train the machines infringing intellectual property?
  - Court with jurisdiction over generative AI, venue and parties?
  - Questions of data protection
  - Questions of liability and accountability
  - Fair use as an exception?